

BOARD OF SUPERVISORS CITY AND COUNTY OF SAN FRANCISCO

MEETING MINUTES

Tuesday, September 24, 2024 - 2:00 PM

**Legislative Chamber, Room 250
City Hall, 1 Dr. Carlton B. Goodlett Place
San Francisco, CA 94102-4689**

Regular Meeting

AARON PESKIN, PRESIDENT

**CONNIE CHAN, MATT DORSEY, JOEL ENGARDIO, RAFAEL MANDELMAN,
MYRNA MELGAR, DEAN PRESTON, HILLARY RONEN, AHSHA SAFAI,
CATHERINE STEFANI, SHAMANN WALTON**

Angela Calvillo, Clerk of the Board

BOARD COMMITTEES

Committee Membership

Budget and Appropriations Committee

Supervisors Chan, Mandelman, Melgar, Walton, Peskin

Budget and Finance Committee

Supervisors Chan, Mandelman, Melgar

Government Audit and Oversight Committee

Supervisors Preston, Stefani, Chan

Land Use and Transportation Committee

Supervisors Melgar, Preston, Peskin

Public Safety and Neighborhood Services Committee

Supervisors Stefani, Engardio, Dorsey

Rules Committee

Supervisors Walton, Safai, Peskin

Meeting Days

Wednesday

1:30 PM

Wednesday

9:00 AM

1st and 3rd Thursday

10:00 AM

Monday

1:30 PM

2nd and 4th Thursday

10:00 AM

Monday

10:00 AM

First-named Supervisor is Chair, Second-named Supervisor is Vice-Chair of the Committee.

Members Present: Connie Chan, Matt Dorsey, Joel Engardio, Rafael Mandelman, Myrna Melgar, Aaron Peskin, Dean Preston, Hillary Ronen, Ahsha Safai, Catherine Stefani, and Shamann Walton

The Board of Supervisors of the City and County of San Francisco met in regular session on Tuesday, September 24, 2024, with President Aaron Peskin presiding.

President Peskin called the meeting to order at 2:03 p.m.

ROLL CALL AND PLEDGE OF ALLEGIANCE

On the call of the roll, Supervisors Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, and Walton were noted present.

All Members were present.

President Peskin presented the ancestral homeland acknowledgement of the Ramaytush Ohlone, who are the original inhabitants of the San Francisco Peninsula, pursuant to Board Rule 4.7.1.

President Peskin led the Members of the Board and the audience in the Pledge of Allegiance to the Flag of the United States of America, pursuant to Board Rule 4.9.

COMMUNICATIONS

Angela Calvillo, Clerk of the Board, welcomed members of the public to attend Board meetings and provide comment in-person or view the meeting live on SFGovTV's award winning Cable Channel 26 or at www.sfgovtv.org. Those requiring interpretation services should contact the Office of the Clerk of the Board at least two business days in advance of the meeting, pursuant to Administrative Code, Section 91.7.

(Written comments may be submitted through email (bos@sfgov.org) or the U.S. Postal Service at City Hall, 1 Dr. Carlton B. Goodlett Place, Room 244, San Francisco, CA 94102.)

AGENDA CHANGES

There were no agenda changes.

CONSENT AGENDA

Recommendation of the Land Use and Transportation Committee

240693 [Park Code - Yerba Buena Gardens]

Ordinance amending the Park Code to allow dogs and certain types of athletic activities in Yerba Buena Gardens; to clarify that existing law prohibits the riding of bicycles and electric scooters in the Gardens; and to make a non-substantive correction regarding the authority of the Real Estate Division. (Real Estate Department)

Ordinance No. 228-24

FINALLY PASSED

Recommendation of the Budget and Finance Committee

240784 [Authorizing Tax-Exempt and/or Taxable Certificates of Participation - Multiple Capital Improvement Projects - Not to Exceed \$61,395,000]

Sponsors: Mayor; Peskin and Mandelman

Ordinance authorizing the execution and delivery of Certificates of Participation, in one or more series on a tax-exempt and/or taxable basis and from time to time, evidencing and representing an aggregate principal amount of not to exceed \$61,395,000 ("Certificates"), to finance and refinance certain capital improvement projects within the City and County of San Francisco's ("City") capital plan and generally consisting of critical repairs, renovations and improvements to City-owned buildings, facilities, streets and works maintained and utilized by various City departments; approving the form of a Supplement to Trust Agreement between the City and U.S. Bank Trust Company, National Association (as successor-in-interest to U.S. Bank National Association), as trustee ("Trustee") (including certain indemnities contained therein); approving respective forms of a Supplement to Property Lease and a Supplement to Project Lease, each between the City and the Trustee, for the lease to the Trustee and lease back to the City of all or a portion of certain real property and improvements owned by the City and located at 375 Laguna Honda Boulevard within the City, at 1 South Van Ness Avenue within the City and at 1 Moreland Drive, San Bruno, California, together with any other property determined by the City's Director of Public Finance to be made subject to the lease and lease back arrangements; approving the form of an Official Notice of Sale and a Notice of Intention to Sell the Certificates; approving the form of an Official Statement in preliminary and final form; approving the form of a purchase contract between the City and one or more initial purchasers of the Certificates; approving the form of a Continuing Disclosure Certificate, as defined herein; granting general authority to City officials to take necessary actions in connection with the authorization, sale, execution and delivery of the Certificates; approving modifications to documents; ratifying previous actions taken in connection therewith, as defined herein; and repealing and rescinding a portion of the authorization to execute and deliver certificates of participation of the City established through the adoption of Ordinance No. 101-23 of the City on June 2, 2023. (Fiscal Impact)

Ordinance No. 229-24

FINALLY PASSED

Recommendations of the Rules Committee**240058 [Surveillance Technology Policy for Police Department Use of Non-City Entity Surveillance Cameras]****Sponsors: Peskin; Mandelman and Engardio**

Ordinance rescinding the sunset provision of Ordinance No. 205-22 and approving the Police Department's continued use of Non-City Entity surveillance cameras consistent with the Department's Surveillance Technology Policy.

Ordinance No. 230-24**FINALLY PASSED****240330 [Administrative Code - Surveillance Technology Policy - Department of Emergency Management - Gunfire Detection]****Sponsors: Mayor; Peskin, Safai and Mandelman**

Ordinance approving Surveillance Technology Policy for the Department of Emergency Management's use of ShotSpotter, a gunfire detection technology. (Department of Emergency Management)

Ordinance No. 231-24**FINALLY PASSED****240470 [Administrative Code - Exempting Legacy Business Assistance Program from City Grant Requirements]****Sponsor: Mandelman**

Ordinance amending the Administrative Code to exempt the Legacy Business Assistance Program from the grantmaking requirements under Administrative Code, Chapter 21G, and all other provisions in the Administrative, Labor and Employment, Environment, and Police Codes imposing obligations or other restrictions on contractors. (Office of Small Business)

Supervisor Mandelman requested to take sponsorship of this matter.

Ordinance No. 232-24**FINALLY PASSED**

The foregoing items were acted upon by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

REGULAR AGENDA

UNFINISHED BUSINESS

Recommendation of the Rules Committee

240636 [Administrative Code - Use of Unassisted Aerial Vehicles]

Sponsors: Mayor; Dorsey, Mandelman and Engardio

Ordinance approving the Police Department's inventory and policy relating to the use of unassisted aerial vehicles, or drones, and making findings consistent with the criteria in State law. (Police Department)

(Supervisors Ronen and Walton voted No on First Reading.)

Ordinance No. 233-24

FINALLY PASSED by the following vote:

Ayes: 9 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Safai, Stefani

Noes: 2 - Ronen, Walton

NEW BUSINESS

Recommendations of the Budget and Finance Committee

240786 [Accept and Expend Grant and Amend Annual Salary Ordinance - Retroactive - United States Department of Agriculture's Forest Service - \$12,000,000]

Sponsors: Mayor; Mandelman and Peskin

Ordinance retroactively authorizing the Department of Public Works to accept and expend a grant in the amount of \$12,000,000 from the Urban and Community Forest Program of the United States Department of Agriculture's Forest Service to fund the Department of Public Works' Justice, Jobs, and Trees Program, that will include tree planting, tree establishment, and urban forestry workforce development in disadvantaged communities for the period of July 1, 2024, through June 30, 2029; and retroactively amending Ordinance No. 167-24 (the Interim Annual Salary Ordinance for Fiscal Years 2024-2025 and 2025-2026 (File No. 240594)) and the Annual Salary Ordinance for Fiscal Years 2024-2025 and 2025-2026 (File No. 240596) to provide for the addition of one grant-funded position of Class 1312 Public Information Officer (FTE 1.0), one grant-funded position of Class 1823 Senior Administrative Analyst (FTE 1.0), and one grant-funded position of Class 3435 Urban Forestry Inspector (FTE 1.0) for the period of July 1, 2024, through June 30, 2029. (Public Works Department)

PASSED ON FIRST READING by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

President Peskin requested File Nos. 240840 and 240815 be called together.

240840 [Appropriation - \$30,500,000 of Certificates of Participation Refunding Proceeds and Operating Revenue - FY2024-2025]

Sponsors: Mayor; Mandelman and Melgar

Ordinance appropriating \$30,500,000 consisting of \$29,000,000 of one or more series of Certificates of Participation Series 2024A proceeds and \$1,500,000 of projected parking revenues from operation of the Music Concourse Garage in the Recreation and Park Department (REC), and placing these funds on Controller's Reserve pending the sale of the Certificates of Participation and acquisition of the Music Concourse Garage in Fiscal Year (FY) 2024-2025.

(Fiscal Impact)

PASSED ON FIRST READING by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

240815 [Management Agreement Amendment - IMCO Parking, LLC - SFMTA Parking Garages and Lots - Not to Exceed \$207,000,000]

Sponsors: Mayor; Mandelman and Melgar

Resolution approving a second amendment to the Management Agreement between the City and County of San Francisco and IMCO Parking, LLC, to add operation of the Music Concourse Garage to the contract scope of work including San Francisco Municipal Transportation Agency (SFMTA) parking garages and lots, and increase the contract amount by \$27,000,000 for a new not to exceed amount of \$207,000,000 with no change to the five year term of January 20, 2023, through January 19, 2028, effective upon approval of this Resolution. (Municipal Transportation Agency)

(Fiscal Impact)

Resolution No. 478-24

ADOPTED by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

240841 [Delegation of Approval Authority for Contracts with OCII for Transbay Project]

Sponsors: Mayor; Mandelman, Melgar and Dorsey

Ordinance delegating Board of Supervisors approval authority under Charter, Section 9.118(a), to the Department of Public Works to enter into and amend contracts with the Office of Community Investment and Infrastructure ("OCII") for the Transbay Project; and authorizing the Department of Public Works to execute certain access agreements necessary to further the development of the Transbay Project.

PASSED ON FIRST READING by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

240752 [Grant Agreement - Retroactive - San Francisco Unified School District - Student Success Fund - Not to Exceed \$26,519,360]

Resolution retroactively approving a grant agreement for Contract No. 1000032928 for the Student Success Fund between San Francisco Unified School District and the City and County of San Francisco, acting by and through its Department of Children, Youth and Their Families, for a total term of July 1, 2024, through June 30, 2025, and for a total not to exceed amount of \$26,519,360. (Department of Children, Youth & Their Families)
(Fiscal Impact)

Privilege of the floor was granted unanimously to Maria Su, Executive Director, and Sherrice Dorsey-Smith (Department of Children, Youth and Their Families) who responded to questions raised throughout the discussion.

Resolution No. 483-24

ADOPTED by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

240828 [Participation Agreement - Retroactive - Federal Centers for Medicare & Medicaid Services - Innovative Dementia Care Program - Anticipated Revenue to the City \$3,500,000]

Sponsor: Mandelman

Resolution retroactively authorizing the San Francisco Department of Public Health ("DPH") to enter into a Participation Agreement with the Federal Centers for Medicare & Medicaid Services to provide federal funding for an innovative dementia care program, for a term of 10 years and 26 days from June 5, 2024, through June 30, 2034, having anticipated revenue of \$3,500,000 and authorizing DPH to make necessary, non-material changes to the agreement that DPH determines, in consultation with the City Attorney, are necessary to correct clerical and/or administrative errors, as long as those changes are consistent with this Resolution. (Public Health Department)

Resolution No. 484-24

ADOPTED by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

240846 [Accept and Expend Grant - Retroactive - California Department of Insurance - Workers' Compensation Insurance Fraud Program - \$1,154,519]

Sponsors: Mayor; Mandelman

Resolution retroactively authorizing the Office of the District Attorney to accept and expend a grant in the amount of \$1,154,519 from the California Department of Insurance for the Workers' Compensation Insurance Fraud Program, for the grant period of July 1, 2024, through June 30, 2025. (District Attorney)

Resolution No. 485-24

ADOPTED by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

240851 [Setting Property Tax Rate and Establishing Pass-Through Rates for Residential Tenants - FY2024-2025]**Sponsor: Chan**

Resolution levying property taxes at a combined rate of \$1.17143563 on each \$100 valuation of taxable property for the City and County of San Francisco, San Francisco Unified School District, San Francisco County Office of Education, San Francisco Community College District, Bay Area Rapid Transit District, and Bay Area Air Quality Management District; and establishing pass-through rates per \$100 of assessed value for residential tenants and based on tenancy commencement dates pursuant to Administrative Code, Chapter 37, for the Fiscal Year (FY) ending June 30, 2025. (Fiscal Impact)

Resolution No. 486-24

ADOPTED by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

Recommendations of the Land Use and Transportation Committee**240801 [Public Works Code - Commemorative Plaque - Activists of Woodland Avenue; Fee Waiver]****Sponsors: Mandelman; Chan, Preston, Peskin and Melgar**

Ordinance designating a portion of the sidewalk near the corner of Woodland Avenue at Parnassus Avenue as the site of a future commemorative plaque in honor of the former activists of Woodland Avenue (Jane Morrison, Jack Morrison, Diana Roosevelt Jaicks, Agar Jaicks); granting the Public Works Director authority to approve the installation of said plaque to be installed at said location following the Director's review of all permit application materials and the approval of the plaque design by the Design Review Committee of the Arts Commission; waiving permit and inspection fees under the Public Works Code for the installation of the plaque; directing official acts in furtherance of this Ordinance, as defined herein; and affirming the Planning Department's determination under the California Environmental Quality Act.

PASSED ON FIRST READING by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

240804 [Various Codes - Greater Downtown Community Benefit District Master Permitting for Entertainment Activation Program]**Sponsor: Peskin**

Ordinance amending the Administrative Code to establish the Greater Downtown Community Benefit District Master Permitting for Entertainment Activation Program ("Greater Downtown Activation Program") to coordinate and streamline permitting for Community Benefit District-sponsored public events taking place at certain locations in the Greater Downtown Area, and to designate Greater Downtown Activation Program locations as Entertainment Zones to allow the off-site consumption of alcoholic beverages purchased at businesses within the Entertainment Zone during events; amending the Public Works Code to establish the requirements for the Greater Downtown Activation Program; amending the Fire Code to establish a new permit type for the Greater Downtown Activation Program; affirming the Planning Department's determination under the California Environmental Quality Act; and directing the Clerk of the Board of Supervisors to forward this Ordinance to the California Building Standards Commission upon final passage.

PASSED ON FIRST READING by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

Recommendations of the Rules Committee**240589 [Mayoral Appointment, Municipal Transportation Agency Board of Directors - Mike Chen]**

Motion approving the Mayor's nomination for the appointment of Mike Chen to the Municipal Transportation Agency Board of Directors, for a term ending March 1, 2025. (Clerk of the Board) (Charter, Section 8A.102(a), provides that the Board of Supervisors shall confirm the Mayor's appointment by a majority (six votes) of the Board of Supervisors after a public hearing. Transmittal Date: May 30, 2024.)

Motion No. M24-086**APPROVED by the following vote:**

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

240820 [Appointments, Urban Forestry Council - Morgan Vaisset-Fauvel, Karla Nagy, Pamela Nagle, Edgar Xochitl Flores, Caroline Scanlan, Joshua Klipp, and Antonio Moreno]

Motion appointing Morgan Vaisset-Fauvel (residency requirement waived), Karla Nagy, Pamela Nagle, Edgar Xochitl Flores, Caroline Scanlan (residency requirement waived), Joshua Klipp, and Antonio Moreno to the Urban Forestry Council, for the unexpired terms ending November 18, 2024, and terms beginning November 18, 2024, and ending November 18, 2026. (Rules Committee)

Motion No. M24-087**APPROVED by the following vote:**

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

240839 [Mayoral Appointment, Public Works Commission - Eleanor Blume]

Motion approving the Mayor's nomination for the appointment of Eleanor Blume to the Public Works Commission, for a term ending July 2, 2026. (Clerk of the Board)

(Charter, Section 4.141, provides that this nomination is subject to confirmation by the Board of Supervisors and shall be the subject of a public hearing and vote within 60 days from the date the nomination is transmitted to the Clerk of the Board. If the Board fails to act on the nomination within 60 days of the date the nomination is transmitted to the Clerk, then the nominee shall be deemed approved. Transmittal date: September 3, 2024.)

Motion No. M24-088

APPROVED by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

SPECIAL ORDER 2:30 P.M. - Recognition of Commendations

Without objection, Rule 5.36 of the Rules of the Board of Supervisors was suspended to grant privilege of the floor to the following guest(s).

Supervisor Mandelman introduced, welcomed, and presented a Certificate of Honor to Noe Walks, accepted by Chris Nanda, on the occasion of the group's third anniversary and in recognition of their accomplishments building community.

Supervisor Preston introduced, welcomed, and presented a posthumous Certificate of Honor for Alireza "Ali" Gharavi, the beloved owner of Central Coffee Tea and Spice, accepted by his brothers Abdee Gharavi and Mohammad Gharavi, in recognition of his many accomplishments as a small business owner making connections, showing kindness and building community.

CLOSED SESSION - 2:30 P.M.**CONFERENCE WITH CITY ATTORNEY - Existing Litigation****240890 [Closed Session - Existing Litigation - United States Environmental Protection Agency - September 24, 2024, at 2:30 p.m.]**

Closed Session for the Board of Supervisors to convene on September 24, 2024, at 2:30 p.m., pursuant to California Government Code, Section 54956.9, and San Francisco Administrative Code, Section 67.10(d)(1), for the purpose of conferring with, or receiving advice from, the City Attorney regarding existing litigation in which the City is a party: City and County of San Francisco v. United States Environmental Protection Agency (United States Supreme Court) Case No. 23-753; scheduled pursuant to Motion No. M24-085 (File No. 240889), approved on September 17, 2024. (Clerk of the Board)

President Peskin opened public comment on the Closed Session and inquired as to whether any individual wished to address the Board. Arianna Harrison; Scott Webb; TJ Brown; Marcia Amini; Jacob Kline; Devin Proctor; Joanie Eisen; Dave Roady; Jeff Young; Ben Eickenberg; Tim Eickenberg; Kathy Willis; Spencer Troust; Mary Butterwick; Genevieve Ramirez; Carmeron Norman; Nicole Vanabel; Lou Gaine; Matt Carter; Bill Martin; Nancy Roberts; Ava; Eliza Menser; Speaker; Liz Evans; Tiffany Pfiefer; Eva Holman; Olivia Van Dam; Speaker; Ely Shruvy; Drew Madison; Sarah Greenwell; Laine Fausough; Speaker; Carolyn Chang; Mina Atkin; Nancy Wu; Nancy Haver; John Anderson; James Park; Francisco Da Costa; JoAnne May; Petersen Harter; Rene; Patricia Vaughey; Otto Duffy; Thierry Fill; Eric Brooks; Lolli Lewis; spoke on various concerns relating to the existing litigation. The President closed public comment and directed the Clerk to prepare the Legislative Chamber for the Board to convene in Closed Session.

CONVENED IN CLOSED SESSION

The Board recessed at the hour of 3:43 p.m. to convene in closed session pursuant to Motion No. M24-085 (File No. 240889), approved on September 17, 2024.

The following Supervisors were noted present: Supervisors Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, and Walton

Persons in attendance: David Chiu, City Attorney, Yvonne Mere, Chief Deputy City Attorney, and Brad Russi, Sheryl Bregman, David Louk, and Estie Kus, Deputy City Attorneys (Office of the City Attorney); Dennis Herrera, General Manager, and Ron Flynn, Assistant General Manager (Public Utilities Commission); and Angela Calvillo, Clerk of the Board, and Victor Young, Assistant Clerk (Office of the Clerk of the Board).

President Peskin was noted absent at 5:30 p.m. and for the remainder of the meeting.

The matter was heard in closed session, no action was taken, and the hearing was filed.

HEARD IN CLOSED SESSION

RECONVENED AS THE BOARD OF SUPERVISORS

The Board reconvened at the hour of 5:58 p.m.

The following Supervisors were noted present: Supervisors Chan, Dorsey, Engardio, Mandelman, Melgar, Preston, Ronen, Safai, Stefani, and Walton

Appointment of President Pro Tempore

At the request of President Peskin, Supervisor Walton assumed the chair, during the Closed Session, at 5:30 p.m. and for the remainder of the meeting.

[Elect Not to Disclose]

Motion that the Board finds that it is in the best interest of the public that the Board elect at this time not to disclose its closed session deliberations.

Supervisor Melgar, seconded by Supervisor Mandelman, moved not to disclose its Closed Session deliberations. The motion carried by the following vote:

Ayes: 10 - Chan, Dorsey, Engardio, Mandelman, Melgar, Preston, Ronen, Safai, Stefani, Walton

Absent: 1 - Peskin

COMMITTEE REPORTS**Recommendation of the Public Safety and Neighborhood Services Committee****240844 [Police Code - Vehicle Sideshows]**

Sponsors: Mayor; Dorsey, Stefani, Engardio and Mandelman

Ordinance amending the Police Code to 1) prohibit persons from promoting a Vehicle Sideshow or preparations for such a sideshow; 2) prohibit persons from assembling together to obstruct the streets, sidewalks, highways, other public right-of-ways, off-street parking facilities, or private property in connection with a Vehicle Sideshow or preparations for such a sideshow; 3) prohibit persons from knowingly being present at a Vehicle Sideshow or preparations for such a sideshow for purposes of participating in the Vehicle Sideshow; 4) prohibit persons present at a Vehicle Sideshow or preparations for such a sideshow from interfering with official performance of law enforcement duties; 5) seize and impound vehicles used in a Vehicle Sideshow or preparations for such a sideshow, and under certain conditions sell the vehicles; and 6) make violations of these provisions a misdemeanor, subject to imprisonment and/or fine.

Supervisor Mandelman requested to be added as a co-sponsor.

President Peskin indicated to the Mayor's Office that the findings in the Ordinance should be amended at the next meeting to ensure they are accurate, true, and supported. Privilege of the floor was granted unanimously to Tom Paulino (Mayor's Office) who affirmed proposed amendments would be provided at the next meeting.

PASSED ON FIRST READING by the following vote:

Ayes: 11 - Chan, Dorsey, Engardio, Mandelman, Melgar, Peskin, Preston, Ronen, Safai, Stefani, Walton

President Peskin Excused from Attendance

Supervisor Mandelman, seconded by Supervisor Preston, moved that President Peskin be excused from attending today's meeting beginning at 6:00 p.m. and for the remainder of the meeting. The motion carried by the following vote:

Ayes: 10 - Chan, Dorsey, Engardio, Mandelman, Melgar, Preston, Ronen, Safai, Stefani, Walton
Excused: 1 - Peskin

SPECIAL ORDER 3:00 P.M.

President Pro Temp Walton requested File Nos. 240777, 240778, 240779, and 240780 be called together.

240777 [Hearing - Appeal of Determination of Exemption From Environmental Review - Proposed 700 Indiana Street Project - September 24, 2024, at 3:00 p.m.]

Hearing of persons interested in or objecting to the determination of exemption from environmental review under the California Environmental Quality Act issued as a General Plan Evaluation by the Planning Department on April 5, 2024, for the proposed project at 700 Indiana Street, Assessor's Parcel Block No. 4062, Lot No. 007, to allow the construction of more than 25,000 gross square feet in the Urban Mixed Use District and to allow for an exception from Horizontal Mass Reduction Requirements for Large Lots of Planning Code as part of a project that would demolish a 15,068 square foot, one-story commercial building and construct a new 70,650 gross square foot, three-story, 48-foot tall non-life science laboratory building within the UMU (Urban Mixed Use) Zoning District, Fringe Financial Service Restricted Use District, and a 58-X Height and Bulk District. (District 10) (Appellant: Donovan Lacy, on behalf of the Dogpatch Neighborhood Association, and J.R. Eppler, on behalf of the Potrero Boosters Neighborhood Association) (Filed July 15, 2024) (Clerk of the Board)

President Pro Temp Walton opened the public hearing and inquired as to whether any individual wished to address the Board. J.R. Eppler and Donovan Lacy (Appellants) provided an overview of the appeal, responded to questions raised throughout the discussion, and further requested the Board to approve the appeal. There were no speakers in support of the appeal and in opposition to the project. Sherie George, Lisa Gibson, and Joy Navarrete (Planning Department) provided an overview of the decision of the Planning Department and responded to questions raised throughout the discussion. Leah Makley and John Kevlin (Project Sponsor) provided an overview of the project, responded to questions raised throughout the discussion, and further requested the Board to uphold the decision of the Planning Department. Matt Zender; Speaker; Dave Fahey; John Dougherty; Demetrius Porter; Speaker; Phillipa Alba; Speaker; Greg Hartaman; Rudy Gonzalez; Christie Sharilla; spoke in support of the project and in opposition to the appeal. J.R. Eppler (Appellant) provided a rebuttal and further requested the Board to approve the appeal. There were no other speakers. President Pro Temp Walton closed public comment and declared the public hearing heard and filed.

HEARD AND FILED

240778 [Affirming the General Plan Evaluation - Proposed 700 Indiana Street Project]

Motion affirming the determination by the Planning Department that the proposed project at 700 Indiana Street is exempt from further environmental review under a General Plan Evaluation. (Clerk of the Board)

Supervisor Walton, seconded by Supervisor Ronen, moved that this Motion be TABLED. The motion failed by the following vote:

Ayes: 2 - Ronen, Walton

Noes: 8 - Chan, Dorsey, Engardio, Mandelman, Melgar, Preston, Safai, Stefani

Excused: 1 - Peskin

Motion No. M24-089

Supervisor Dorsey, seconded by Supervisor Mandelman, moved that this Motion be APPROVED. The motion carried by the following vote:

Ayes: 9 - Chan, Dorsey, Engardio, Mandelman, Melgar, Preston, Ronen, Safai, Stefani

Noes: 1 - Walton

Excused: 1 - Peskin

240779 [Conditionally Reversing the General Plan Evaluation - Proposed 700 Indiana Street Project]

Motion conditionally reversing the determination by the Planning Department that the proposed project at 700 Indiana Street is exempt from further environmental review, under a General Plan Evaluation, subject to the adoption of written findings of the Board in support of this determination. (Clerk of the Board)

Supervisor Walton, seconded by Supervisor Ronen, moved that this Motion be APPROVED. The motion failed by the following vote:

Ayes: 2 - Ronen, Walton

Noes: 8 - Chan, Dorsey, Engardio, Mandelman, Melgar, Preston, Safai, Stefani

Excused: 1 - Peskin

Supervisor Dorsey, seconded by Supervisor Mandelman, moved that this Motion be TABLED. The motion carried by the following vote:

Ayes: 9 - Chan, Dorsey, Engardio, Mandelman, Melgar, Preston, Ronen, Safai, Stefani

Noes: 1 - Walton

Excused: 1 - Peskin

240780 [Preparation of Findings to Reverse the General Plan Evaluation - Proposed 700 Indiana Street Project]

Motion directing the Clerk of the Board to prepare findings reversing the determination by the Planning Department that the proposed project at 700 Indiana Street is exempt from further environmental review under a General Plan Evaluation. (Clerk of the Board)

Supervisor Walton, seconded by Supervisor Ronen, moved that this Motion be APPROVED. The motion failed by the following vote:

Ayes: 2 - Ronen, Walton

Noes: 8 - Chan, Dorsey, Engardio, Mandelman, Melgar, Preston, Safai, Stefani

Excused: 1 - Peskin

Supervisor Dorsey, seconded by Supervisor Mandelman, moved that this Motion be TABLED. The motion carried by the following vote:

Ayes: 9 - Chan, Dorsey, Engardio, Mandelman, Melgar, Preston, Ronen, Safai, Stefani

Noes: 1 - Walton

Excused: 1 - Peskin

ROLL CALL FOR INTRODUCTIONS

See Legislation Introduced below.

PUBLIC COMMENT

Lea McGeever; expressed concerns regarding policies influenced by politics and messaging by various officials.

Supervisor Preston was noted absent at 7:16 p.m. and for the remainder of the meeting.

Supervisor Preston Excused from Attendance

Supervisor Walton, seconded by Supervisor Melgar, moved that Supervisor Preston be excused beginning at 7:16 p.m. and for the remainder of the meeting. The motion carried by the following vote:

Ayes: 9 - Chan, Dorsey, Engardio, Mandelman, Melgar, Ronen, Safai, Stefani, Walton

Excused: 2 - Peskin, Preston

FOR ADOPTION WITHOUT COMMITTEE REFERENCE

240910 [Urging UCSF to Address Work Conditions and Classification of Clinical Social Workers, Represented by University Professional & Technical Employees (UPTE) -CWA 9119]

Sponsors: Ronen; Preston, Walton, Chan, Melgar, Peskin and Mandelman

Resolution urging the University of California San Francisco (UCSF) to address the wage, benefit, and advancement inequities between their Clinical Social Workers, represented by the University Professional & Technical Employees (UPTE)-CWA 9119, stationed at the UCSF's medical centers, versus UCSF's "Campus" clinics associated with Zuckerberg San Francisco General Hospital and other community clinics; and urging UCSF to stop the implementation of a two-tiered mental health system between these workers, which further exacerbates existing injustices in the workplace.

Supervisor Mandelman requested to be added as a co-sponsor.

Resolution No. 487-24

ADOPTED

240916 [Latinx Heritage Month - September 15 through October 15, 2024]

Sponsors: Melgar; Ronen, Safai, Walton, Chan, Peskin, Preston, Mandelman, Engardio and Stefani

Resolution declaring September 15, 2024, through October 15, 2024, as "Latinx Heritage Month" in the City and County of San Francisco to honor and to celebrate the contributions of the Latinx community.

Supervisors Preston, Mandelman, Engardio, and Stefani requested to be added as co-sponsors.

Resolution No. 488-24

ADOPTED

240915 [Appointment, Park, Recreation, and Open Space Advisory Committee - Helen Doyle]

Motion appointing Helen Doyle, term ending February 1, 2026, to the Park, Recreation, and Open Space Advisory Committee (District 7). (Clerk of the Board)

Motion No. M24-090

APPROVED

The foregoing items were acted upon by the following vote:

Ayes: 9 - Chan, Dorsey, Engardio, Mandelman, Melgar, Ronen, Safai, Stefani, Walton

Excused: 2 - Peskin, Preston

Severed from the For Adoption Without Committee Reference Agenda

Supervisor Stefani requested that File Nos. 240911 and 240912 be severed so that they may be considered separately.

240911 [Saint Vincent de Paul School Day - September 27, 2024]

Sponsor: Stefani

Resolution declaring September 27, 2024, as "Saint Vincent de Paul School Day" in the City and County of San Francisco in commemoration of the school's 100th anniversary.

Resolution No. 489-24

ADOPTED by the following vote:

Ayes: 9 - Chan, Dorsey, Engardio, Mandelman, Melgar, Ronen, Safai, Stefani, Walton

Excused: 2 - Peskin, Preston

240912 [Urging the Secretary of the Navy to Christen a Ship as the “U.S.S. Dianne Feinstein”]**Sponsors: Stefani, Mandelman, Melgar, Safai, Dorsey, Ronen and Walton**

Resolution urging the Secretary of the Navy to christen a ship as the “U.S.S. Dianne Feinstein,” commemorating Senator Feinstein’s enduring contributions to San Francisco, the state of California, and the United States.

Supervisors Mandelman, Melgar, Safai, Dorsey, Ronen, and Walton requested to be added as co-sponsors.

Privilege of the floor was granted unanimously to Eileen Mariano, granddaughter of Dianne Feinstein, who thanked the Board and expressed support of the Resolution.

Resolution No. 490-24**ADOPTED by the following vote:**

Ayes: 9 - Chan, Dorsey, Engardio, Mandelman, Melgar, Ronen, Safai, Stefani, Walton

Excused: 2 - Peskin, Preston

IMPERATIVE AGENDA

There were no imperative agenda items.

LEGISLATION INTRODUCED AT ROLL CALL

Introduced by a Supervisor or the Mayor

Pursuant to Charter, Section 2.105, an Ordinance or Resolution may be introduced before the Board of Supervisors by a Member of the Board, a Committee of the Board, or the Mayor and shall be referred to and reported upon by an appropriate Committee of the Board.

ORDINANCES

240925 [Sunnydale HOPE SF - Street and Public Infrastructure Acceptance - Establishing Official Sidewalk Widths and Street Grades]

Sponsors: Mayor; Walton

Ordinance accepting irrevocable offers of public infrastructure associated with the Sunnydale HOPE SF Project, Phase 2, including an offer of improvements for infrastructure located within portions of Sunnydale Avenue, Hahn Street, and Harmonia Street, and an offer of dedication for real property underlying a portion of Sunnydale Avenue; dedicating the public improvements for public use; designating the public improvements for public street and roadway purposes; accepting the public infrastructure for City maintenance and liability purposes, subject to specified limitations; establishing official street grades, sidewalk widths, and public right-of-way widths; amending Ordinance No. 1061 entitled "Regulating the Width of Sidewalks" to establish official sidewalk widths on Sunnydale Avenue and Hahn Street; accepting a Public Works Order recommending various actions in regard to the public infrastructure improvements; adopting findings under the California Environmental Quality Act; and making findings of consistency with the General Plan, and the eight priority policies of Planning Code, Section 101.1.

09/24/24; ASSIGNED UNDER 30 DAY RULE to Land Use and Transportation Committee, expires on 10/24/2024.

240926 [Various Codes - Fee Elimination and Administrative Provisions]

Sponsors: Mayor; Peskin, Mandelman, Engardio and Safai

Ordinance amending the Business and Tax Regulations Code, Administrative Code, Health Code, Police Code, and Public Works Code to make the following changes if the voters approve Proposition M in the November 5, 2024, election: 1) eliminate certain fees beginning in 2026, and 2) increase the gross receipts threshold from \$2,500,000 to \$5,000,000 for reductions to annual curbside shared spaces fees beginning in 2026; and to make the following additional changes regardless of whether the voters approve Proposition M: 3) extend indefinitely the waiver of business location and device fees for businesses with taximeter devices; 4) extend indefinitely the suspension of the registration certificate and fee requirements for taxi drivers and drivers for transportation network companies; 5) authorize the Tax Collector to collect certain additional license fees on the unified license bill; and 6) amend the delinquency date and penalty provisions and add interest provisions relating to license fees collected on the unified license bill.

(Fiscal Impact; No Budget and Legislative Analyst Report)

09/24/24; ASSIGNED UNDER 30 DAY RULE to Rules Committee, expires on 10/24/2024.

240927 [Planning Code - Development Impact Fees and Requirements for Non-Residential to Residential Conversion Projects]**Sponsors: Mayor; Dorsey**

Ordinance amending the Planning Code to exempt certain types of projects in the downtown area that replace non-residential uses with residential uses from development impact fees and requirements, including the Inclusionary Housing fee, and remove the application deadline from the Commercial to Residential Adaptive Reuse Program; affirming the Planning Department's determination under the California Environmental Quality Act; making findings of consistency with the General Plan, and the eight priority policies of Planning Code, Section 101.1; and making findings of public necessity, convenience, and welfare pursuant to Planning Code, Section 302. (September 27, 2024 - Pending further review for Economic Impact)

09/24/24; ASSIGNED UNDER 30 DAY RULE to Land Use and Transportation Committee, expires on 10/24/2024.

240843 [Administrative Code - Entertainment Zones]**Sponsors: Mayor; Dorsey and Mandelman**

Ordinance amending the Administrative Code to establish two Entertainment Zones: the Mid-Market Entertainment Zone, on Market Street between 5th Street and 6th Street, with eastern boundaries at Mason Street on the north side of Market Street and at 5th Street on the south side of Market Street, and western boundaries at the intersection of Golden Gate Avenue and Taylor Street on the north side of Market Street and at 6th Street on the south side of Market Street; and the Arena Entertainment Zone, bounded by Warriors Way on the north, Terry A. Francois Boulevard on the east, 16th Street on the south, and 3rd Street on the west; and affirming the Planning Department's determination under the California Environmental Quality Act.

09/03/24; ASSIGNED UNDER 30 DAY RULE to Land Use and Transportation Committee, expires on 10/3/2024.

09/12/24; REFERRED TO DEPARTMENT.

09/17/24; RESPONSE RECEIVED.

09/24/24; SUBSTITUTED AND ASSIGNED UNDER 30 DAY RULE to Land Use and Transportation Committee.

240928 [Street Vacation - Portion of Airspace over Natoma Street between First and Second Streets]**Sponsor: Dorsey**

Ordinance ordering the summary street vacation of a portion of the airspace above Natoma Street between First and Second Streets and adjacent to the Transbay Transit Center; waiving application of Administrative Code, Chapter 23 to the conveyance of the street vacation area; finding the street vacation area is not necessary for City's use and is exempt surplus property under the California Surplus Land Act, California Government Code, Sections 54220 et seq.; quitclaiming the City's interest in the street vacation area to the Transbay Joint Powers Authority; affirming the Planning Department's determination under the California Environmental Quality Act; and making findings of consistency with the General Plan, and the eight priority policies of the Planning Code, Section 101.1.

09/24/24; ASSIGNED UNDER 30 DAY RULE to Land Use and Transportation Committee, expires on 10/24/2024.

240929 [Planning Code, Zoning Map - 99 Rhode Island Street]**Sponsor: Dorsey**

Ordinance amending the Zoning Map of the Planning Code to change the zoning use district designation of 99 Rhode Island Street, Assessor's Parcel Block No. 3912, Lot No. 02, from Production, Distribution and Repair District-1, Design (PDR-1-D) to Urban Mixed Use (UMU); affirming the Planning Department's determination under the California Environmental Quality Act; making public necessity, convenience, and welfare findings under Planning Code, Section 302; and making findings of consistency with the General Plan, and the eight priority policies of Planning Code, Section 101.1.

09/24/24; ASSIGNED UNDER 30 DAY RULE to Land Use and Transportation Committee, expires on 10/24/2024.

240930 [Grant Agreement Amendment - Planned Parenthood Northern California - Security Services - Not to Exceed \$571,000]**Sponsors: Stefani; Mandelman and Preston**

Ordinance authorizing the Department of Public Health to amend an existing grant to Planned Parenthood Northern California by increasing the not to exceed amount by \$171,000 for a total not to exceed amount of \$571,000 to fund security personnel to support access to family planning and other sexual and reproductive healthcare services, with no changes to the grant term of April 1, 2023, through March 31, 2025; and waiving the competitive solicitation requirements in the Administrative Code. (Public Health Department)

09/24/24; ASSIGNED to Board of Supervisors.

240931 [Planning Code, Zoning Map - 2301 Chestnut Street Special Sign District]**Sponsor: Stefani**

Ordinance amending the Planning Code and Zoning Map to establish the 2301 Chestnut Street Special Sign District encompassing the real property consisting of Assessor's Parcel Block No. 0936, Lot No. 001 to allow two projecting signs at 2301 Chestnut Street; affirming the Planning Department's determination under the California Environmental Quality Act; making findings of consistency with the General Plan, and the eight priority policies of Planning Code, Section 101.1; and making findings of public necessity, convenience, and welfare under Planning Code, Section 302.

09/24/24; ASSIGNED UNDER 30 DAY RULE to Land Use and Transportation Committee, expires on 10/24/2024.

240932 [Planning Code - Third Street Alcohol Restricted Use District]**Sponsor: Walton**

Ordinance amending the Planning Code to create an exception for certain distilleries, wineries, and breweries to establish on-sale liquor establishments in the Bayview Neighborhood Commercial District; affirming the Planning Department's determination under the California Environmental Quality Act; making findings of consistency with the General Plan, and the eight priority policies of Planning Code, Section 101.1; and making findings of public necessity, convenience, and welfare pursuant to Planning Code, Section 302.

09/24/24; ASSIGNED UNDER 30 DAY RULE to Land Use and Transportation Committee, expires on 10/24/2024.

RESOLUTIONS

240933 [Agreement - New Flyer of America, Inc. - Purchase 94 40-ft Low Floor Hybrid Electric Buses - Not to Exceed \$117,751,398]

Sponsors: Mayor; Mandelman

Resolution approving an agreement between the City and County of San Francisco, acting by and through the San Francisco Municipal Transportation Agency (SFMTA), and New Flyer of America, Inc. to procure 94 40-foot low floor hybrid electric coaches, along with spare parts, special tools, manuals, training, and telematics licenses through a cooperative purchasing agreement established by the State of Washington for an amount not to exceed \$117,751,398 for term not to exceed five years effective upon approval of this Resolution; and authorizing SFMTA to enter into any amendments or other modifications to the agreement that do not materially increase the obligations or liabilities, or materially decrease the public benefits accruing to the SFMTA and are necessary or advisable to effectuate the purposes of the Resolution. (Municipal Transportation Agency) (Fiscal Impact)

09/24/24; RECEIVED AND ASSIGNED to Budget and Finance Committee.

240934 [Memorandum of Understanding - InnovateUS - Participation in Program to Provide Customer Feedback - \$0]

Sponsor: Mayor

Resolution authorizing Department of Technology Chief Information Officer to enter a no cost Memorandum of Understanding (MOU) under which the City will provide feedback to InnovateUS and which will grant to InnovateUS a right to use the City's feedback for any purpose, including the development, modification, marketing, or publicity of products or services, effective upon approval of this Resolution for a two year term; and to authorize the Director of Department of Technology to enter into amendments or modifications to the MOU that do not materially increase the obligations or liabilities to the City and are necessary to effectuate the purposes of the MOU or this Resolution. (Department of Technology)

09/24/24; RECEIVED AND ASSIGNED to Budget and Finance Committee.

240935 [Accept and Expend Grant - Retroactive - California Department of Health Care Services - Providing Access and Transforming Health (PATH) Capacity and Infrastructure, Transition, Expansion and Development (CITED) 1B - \$3,862,929.40]

Sponsor: Mayor

Resolution retroactively authorizing the Department of Public Health to accept and expend a grant in the amount of \$3,862,929.40 from the California Department of Health Care Services for participation in a program, entitled "Providing Access and Transforming Health (PATH) Capacity and Infrastructure, Transition, Expansion and Development (CITED) 1B," for the period of October 1, 2021, through June 30, 2025.

09/24/24; RECEIVED AND ASSIGNED to Budget and Finance Committee.

240936 [Accept and Expand Grant - Retroactive - California Department of Health Care Services - Capacity and Infrastructure, Transition, Expansion and Development Program - Intergovernmental Transfer - \$1,612,839.48]

Sponsor: Mayor

Resolution retroactively authorizing the City and County of San Francisco to accept and expend \$1,612,839.48 in Grant funds from the California Department of Health Care Services (DHCS) for the Capacity and Infrastructure, Transition, Expansion and Development (CITED) Program - Intergovernmental Transfer (IGT), part of the California Providing Access and Transforming Health Initiative, for a Grant term of October 1, 2022, through February 28, 2026; authorizing the City to release all claims against DHCS and its Third-Party Administrator arising out of or relating to the receipt of Grant funds and/or activities associated with the Grant program; and to authorize the Director of Health to enter into amendments or modifications to the Grant that do not materially increase the obligations or liabilities to the City and are necessary to effectuate the purposes of the Grant or this Resolution. (Public Health Department)

09/24/24; RECEIVED AND ASSIGNED to Budget and Finance Committee.

240937 [Predevelopment Agreement Amendment - Retroactive - Potrero Neighborhood Collective LLC - 2500 Mariposa - Potential Termination Payment Not to Exceed \$15,546,566]

Sponsors: Mayor; Ronen

Resolution retroactively approving a Second Amendment to the Predevelopment Agreement between Potrero Neighborhood Collective LLC and the City and County of San Francisco, acting by and through the San Francisco Municipal Transportation Agency, dated for reference purposes as of October 1, 2024, and retroactively effective as of October 17, 2024, to increase the potential termination payment by \$5,556,566 for a total potential termination payment that will not exceed \$15,546,566; and making environmental findings under the California Environmental Quality Act. (Fiscal Impact)

09/24/24; RECEIVED AND ASSIGNED to Budget and Finance Committee.

240938 [Urging San Francisco Unified School District Superintendent to Reevaluate School Closure Plans]

Sponsors: Chan; Walton

Resolution urging San Francisco Unified School District Superintendent, Dr. Matt Wayne, to reevaluate his plan for citywide school closures and/or mergers and work with the California Department of Education on fiscal solvency, including an audit of existing budget systems, developing an in-depth benefit and cost saving analysis, exploring options before considering school closures or mergers, and supporting upcoming revenue measures.

09/24/24; REFERRED FOR ADOPTION WITHOUT COMMITTEE REFERENCE AGENDA AT THE NEXT BOARD MEETING.

240939 [San Francisco Stairway Month - October 2024]

Sponsors: Mandelman; Melgar, Peskin, Stefani, Engardio, Dorsey, Chan, Ronen and Preston

Resolution proclaiming October 2024 as the first "San Francisco Stairway Month" in the City and County of San Francisco and supporting community beautification projects, encourage neighborhood exploration, and inspire San Francisco's inhabitants, elected officials, and city workers to find their nearest, or furthest, staircase and partake in San Francisco Stairway Month events and activities.

09/24/24; REFERRED FOR ADOPTION WITHOUT COMMITTEE REFERENCE AGENDA AT THE NEXT BOARD MEETING.

240940 [Urging to Resolve a San Francisco Public Utilities Commission Lawsuit with the United States Environmental Protection Agency]**Sponsors: Melgar; Peskin, Ronen and Preston**

Resolution urging the City Attorney and the San Francisco Public Utilities Commission to immediately resolve its lawsuit regarding the Clean Water Act with the United States Environmental Protection Agency.

09/24/24; RECEIVED AND ASSIGNED to Government Audit and Oversight Committee.

240941 [Supporting United States House of Representatives Bill H.R. 9662 (Senator Smith and Representative Ocasio-Cortez) - Homes Act]**Sponsors: Preston; Ronen, Walton, Safai and Peskin**

Resolution supporting United States House of Representatives Bill H.R. 9662, the Homes Act, introduced by United States Senator Tina Smith and Representative Alexandria Ocasio-Cortez, to address the affordable housing crisis by establishing a national Housing Development Authority to create permanently affordable, climate-resilient housing and provide an alternative to market-rate housing.

09/24/24; REFERRED FOR ADOPTION WITHOUT COMMITTEE REFERENCE AGENDA AT THE NEXT BOARD MEETING.

MOTIONS

240942 [Committee of the Whole - Unaccounted \$20,000,000 of Special Education Funding - Unfilled Positions that Support Work at SFUSD - Review of \$8,400,000 of Student Success Fund for Newly Created School Stabilization Team - October 1, 2024, at 3:00 p.m.]**Sponsors: Safai; Peskin**

Motion scheduling the Board of Supervisors to sit as a Committee of the Whole, on October 1, 2024, at 3:00 p.m., to hold a public hearing to examine the unaccounted for \$20,000,000 in the San Francisco Unified School District's (SFUSD) budget for Special Education and the unfilled positions that support SFUSD's Special Education work, and the \$8,400,000 from the Student Success Fund the Mayor allocated to the newly announced School Stabilization Team.

09/24/24; REFERRED FOR ADOPTION WITHOUT COMMITTEE REFERENCE AGENDA AT THE NEXT BOARD MEETING.

240945 [Committee of the Whole - Grant Agreement - Planned Parenthood Northern California - Security Services - Not to Exceed \$571,000 - October 1, 2024, at 3:00 p.m.]**Sponsor: Stefani**

Motion scheduling the Board of Supervisors to sit as a Committee of the Whole on October 1, 2024, at 3:00 p.m., to hold a public hearing to consider an Ordinance authorizing the Department of Public Health to amend an existing grant to Planned Parenthood Northern California by increasing the not to exceed amount by \$171,000 for a total not to exceed amount of \$571,000 to fund security personnel to support access to family planning and other sexual and reproductive healthcare services, with no changes to the grant term of April 1, 2023, through March 31, 2025; and waiving the competitive solicitation requirements in the Administrative Code.

09/24/24; REFERRED FOR ADOPTION WITHOUT COMMITTEE REFERENCE AGENDA AT THE NEXT BOARD MEETING.

REQUESTS FOR HEARING

240943 [Hearing - Committee of the Whole - Unaccounted \$20,000,000 Special Education Funding - Unfilled Positions of Support Work at SFUSD - Review of \$8,400,000 Student Success Fund for Newly Created School Stabilization Team - October 1, 2024, at 3:00 p.m.]

Sponsors: Safai; Peskin

Hearing of the Board of Supervisors sitting as a Committee of the Whole on Tuesday, October 1, 2024, at 3:00 p.m., to hold a public hearing to examine the unaccounted for \$20,000,000 in the San Francisco Unified School District's (SFUSD) budget for Special Education and the unfilled positions that support SFUSD's Special Education work, and the \$8,400,000 from the Student Success Fund the Mayor allocated to the newly announced School Stabilization Team; and requesting the SFUSD Superintendent, Department of Children Youth and Their Families, Recreation and Park Department, Mayor's Office, Controller's Office, Human Services Agency, Department of Human Resources, and Treasurer & Tax Collector to report; scheduled pending approval of the Motion contained in File No. 240942, to be considered on October 1, 2024.

09/24/24; RECEIVED AND ASSIGNED to Board of Supervisors.

240946 [Hearing - Committee of the Whole - Grant Agreement - Planned Parenthood Northern California - Security Services - Not to Exceed \$571,000 - October 1, 2024, at 3:00 p.m.]

Hearing of the Board of Supervisors sitting as a Committee of the Whole on October 1, 2024, at 3:00 p.m., to hold a public hearing to consider an Ordinance authorizing the Department of Public Health to amend an existing grant to Planned Parenthood Northern California by increasing the not to exceed amount by \$171,000 for a total not to exceed amount of \$571,000 to fund security personnel to support access to family planning and other sexual and reproductive healthcare services, with no changes to the grant term of April 1, 2023, through March 31, 2025; and waiving the competitive solicitation requirements in the Administrative Code; scheduled pending approval of the Motion contained in File No. 240945, to be considered on October 1, 2024. (Clerk of the Board)

09/24/24; SCHEDULED FOR PUBLIC HEARING to Board of Supervisors.

Introduced at the Request of a Department

Pursuant to Rules of Order of the Board of Supervisors, Section 2.7.1, Department Heads may submit proposed legislation to the Clerk of the Board, in which case titles of the legislation will be printed at the rear of the next available agenda of the Board.

PROPOSED ORDINANCES**240893 [Administrative Code - Surveillance Technology Policy - Use of Web Filtering Software - Juvenile Probation Department]**

Ordinance approving the Surveillance Technology Policy for Juvenile Probation Department's use of web filtering software. (Juvenile Probation Department)

09/10/24; RECEIVED FROM DEPARTMENT.

09/24/24; ASSIGNED UNDER 30 DAY RULE to Rules Committee, expires on 10/24/2024.

240894 [Settlement of Lawsuit - Yulanda Williams - \$625,000]

Ordinance authorizing settlement of the lawsuit filed by Yulanda Williams against the City and County of San Francisco for \$625,000; the lawsuit was filed on May 29, 2019, in San Francisco Superior Court, Case No. CGC-19-576323; entitled Yulanda Williams v. City and County of San Francisco et al.; the lawsuit involves an employment dispute. (City Attorney)

09/12/24; RECEIVED FROM DEPARTMENT.

09/24/24; RECEIVED AND ASSIGNED to Government Audit and Oversight Committee.

240895 [Settlement of Lawsuit - Jane Doe - \$200,000]

Ordinance authorizing settlement of the lawsuit filed by Jane Doe against the City and County of San Francisco for \$200,000; the lawsuit was filed on September 12, 2022, in United States District Court, Northern District of California, Case No. 22-cv-05179; entitled Jane Doe v. City and County of San Francisco, et al.; the lawsuit involves an alleged civil rights violation. (City Attorney)

09/12/24; RECEIVED FROM DEPARTMENT.

09/24/24; RECEIVED AND ASSIGNED to Government Audit and Oversight Committee.

240896 [Settlement of Lawsuit - Barnard Jones and Patricia Farrell - \$475,000]

Ordinance authorizing settlement of the lawsuit filed by Barnard Jones and Patricia Farrell against the City and County of San Francisco for \$475,000; the lawsuit was filed on June 28, 2023, in San Francisco Superior Court, Case No. CGC-23-607339; entitled Barnard Jones, et al. v. City and County of San Francisco, et al.; the lawsuit involves alleged personal injury on a City street. (City Attorney)

09/12/24; RECEIVED FROM DEPARTMENT.

09/24/24; RECEIVED AND ASSIGNED to Government Audit and Oversight Committee.

240897 [Increase of Wastewater Enterprise Interim Funding Program - Not to Exceed \$1,250,000,000; Increase of Water Enterprise Interim Funding Program - Not to Exceed \$750,000,000; Increase of Power Enterprise Interim Funding Program - Not to Exceed \$450,000,000]

Ordinance authorizing (i) an increase of the aggregate principal amount of the Wastewater Enterprise's Interim Funding Program from an aggregate principal amount of \$750,000,000 to a not to exceed aggregate principal amount of \$1,250,000,000 to finance on a short-term interim basis various capital projects benefitting the Wastewater Enterprise, (ii) an increase of the aggregate principal amount of the Water Enterprise's Interim Funding Program from an aggregate principal amount of \$500,000,000 to a not to exceed aggregate principal amount of \$750,000,000 to finance on a short-term interim basis various capital projects benefitting the Water Enterprise, and (iii) an increase of the aggregate principal amount of the Power Enterprise's Interim Funding Program from an aggregate principal amount of \$250,000,000 to a not to exceed aggregate principal amount of \$450,000,000 to finance on a short-term interim basis various capital projects benefitting the Power Enterprise; and ratifying previous actions taken in connection therewith, as defined herein. (Public Utilities Commission)
(Fiscal Impact)

09/16/24; RECEIVED FROM DEPARTMENT.

09/24/24; ASSIGNED UNDER 30 DAY RULE to Budget and Finance Committee, expires on 10/24/2024.

PROPOSED RESOLUTIONS

240898 [Radio Usage Agreement - Retroactive - San Francisco State University - Public Safety Radio System Support - Anticipated Revenue \$1,689,041]
Sponsor: Melgar

Resolution retroactively authorizing the Department of Technology to enter into an Agreement with the San Francisco State University to provide radio system usage and maintenance, as well as radio interoperability for authorized personnel to communicate with City public safety personnel for the period between August 27, 2024, through June 30, 2035, with an anticipated revenue of \$1,689,041; and to authorize the Director of Technology to enter into amendments or modifications to the Agreement that do not materially increase the obligations or liabilities to the City and are necessary to effectuate the purposes of the Agreement or this Resolution. (Department of Technology)

09/12/24; RECEIVED FROM DEPARTMENT.

09/24/24; RECEIVED AND ASSIGNED to Budget and Finance Committee.

240899 [Contract Amendment - A1 Protective Services, Inc. - Security Guard Services - Not to Exceed \$34,767,000]

Resolution approving a first amendment to PeopleSoft Umbrella Contract ID GRP0000005 between the City, acting by and through the Office of Contract Administration ("OCA"), and A1 Protective Services, Inc. ("Contractor") for security guard services, increasing the contract amount by \$26,017,000 for a new total not to exceed amount of \$34,767,000 with no changes to the contract term of August 1, 2023, through July 31, 2028; and to authorize OCA to enter into amendments or modifications to the contract that do not materially increase the obligations or liabilities to the City and are necessary to effectuate the purposes of the contract or this Resolution. (Office of Contract Administration)
(Fiscal Impact)

09/13/24; RECEIVED FROM DEPARTMENT.

09/24/24; RECEIVED AND ASSIGNED to Budget and Finance Committee.

240900 [Contract Amendment - Treeline Security, Inc. - Security Guard Services - Not to Exceed \$38,977,000]

Resolution approving a second amendment to PeopleSoft Umbrella Contract ID GRP0000007 between the City, acting by and through the Office of Contract Administration ("OCA"), and Treeline Security, Inc. for security guard services, increasing the contract amount by \$30,227,000 for a total not to exceed amount of \$38,977,000 with no changes to the contract term of August 1, 2023, through July 31, 2028; and to authorize OCA to enter into amendments or modifications to the contract that do not materially increase the obligations or liabilities to the City and are necessary to effectuate the purposes of the contract or this Resolution. (Office of Contract Administration)
(Fiscal Impact)

09/13/24; RECEIVED FROM DEPARTMENT.

09/24/24; RECEIVED AND ASSIGNED to Budget and Finance Committee.

In Memoriams

Ed Donnelly - Supervisor Rafael Mandelman

Rudy Stadlberger - Supervisor Rafael Mandelman

ADJOURNMENT

There being no further business, the Board adjourned at the hour of 7:43 p.m.

N.B. The Minutes of this meeting set forth all actions taken by the Board of Supervisors on the matters stated, but not necessarily the chronological sequence in which the matters were taken up.

Approved by the Board of Supervisors on October 29, 2024.

Angela Calvillo, Clerk of the Board